

As to gavelkind, and borough-english, the law takes particular notice of them^b, and there is no occasion to prove that such customs actually exist, but only that the lands in question are subject thereto. All other private customs must be particularly pleaded^c, and as well the existence of such customs must be shewn, as that the thing in dispute is within the custom alleged. The trial in both cases (both to shew the existence of the custom, as, “that in the manor of Dale lands shall descend only to the heirs male, and never to the heirs female;” and also to shew that the lands in question are within that manor) is by a jury of twelve men, and not by the judges, except the same particular custom has been before tried, determined, and recorded in the same court^d.

THE customs of London differ from all others in point of trial: for, if the existence of the custom be brought in question, it shall not be tried by a jury, but by certificate from the lord mayor and aldermen by the mouth of their recorder^e; unless it be such a custom as the corporation is itself interested in, as a right of taking toll, &c, for then the law permits them not to certify on their own behalf^f.

WHEN a custom is actually proved to exist, the next enquiry is into the legality of it; for if it is not a good custom it ought to be no longer used. “*Malus usus abolendus est*” is an established maxim of the law^g. To make a particular custom good, the following are necessary requisites.

1. THAT it have been used so long, that the memory of man runneth not to the contrary. So that if any one can shew the beginning of it, it is no good custom. For which reason no custom can prevail against an express act of parliament; since

^b Co. Litt. 175 b.

^c Litt. §. 265.

^d Dr and St. r. 10.

^e Cro. Car. 516.

^f Hob. 85.

^g Litt. §. 212. 4 Inst. 274.